

conclusive, but the Court will see who actually received, and charge that person accordingly" (*b*). The distinction taken by Lord Harcourt has by subsequent authorities been clearly overruled (*c*).

Executor may be answerable to creditors when not to legatees.—Lord Redesdale, however, has rightly observed, that "there *may* be a case, where executors would be charged as against creditors, though not as against legatees; for legatees are bound by the terms of the will, creditors are not, and therefore, if the testator direct the executors to collect the assets, and pay the proceeds into the hands of A., which is done accordingly, and A. fails, if a creditor remain unpaid, he may charge the executors; but, as regards a legatee, the executors may justify themselves by the directions of the will" (*d*).

9. Executor responsible for any act which puts assets into the hands of a co-executor.—On the same principle that an executor is liable for joining in a receipt, he is responsible for any act by which he reduces any part of the testator's property into the sole possession of his co-executor (*e*), as if an executor join in drawing (*f*), or indorsing (*g*), a bill, or be otherwise instrumental in giving to his co-executor possession of any part of the property (*h*). So it is laid down in an old case, that "if by agreement between the executors one be to receive and intermeddle with such a part of the estate, and the other with such a part, each of them will be chargeable for the whole, because the receipts of each are pursuant to the agreement made betwixt both" (*i*).

[*272] So an executor is answerable, if he give *a power of attorney, or other authority, to his co-executor

(*b*) *Harden v. Parsons*, 1 Eden, 147.

(*c*) See *Sadler v. Hobbs*, 2 B. C. C. 117; and see *Doyle v. Blake*, 2 Sch. & Lef. 239.

(*d*) *Doyle v. Blake*, 2 Sch. & Lef. 239, 245.

(*e*) *Townsend v. Barber*, 1 Dick. 356; *Moses v. Levi*, 3 Y. & C. 359; *Candler v. Tillett*, 22 Beav. 263, per M. R.

(*f*) *Sadler v. Hobbs*, 2 B. C. C. 114.

(*g*) *Hovey v. Blakeman*, 4 Ves. 608, per Lord Alvanley.

(*h*) *Clough v. Dixon*, 3 M. & Cr. 497, per Lord Cottenham; and see *Dines v. Scott*, T. & R. 361.

(*i*) *Gill v. Attorney-General*, Hard. 314; [*Lewis v. Nobbs*, 8 Ch. D. 591;] see *Moses v. Levi*, 3 Y. & C. 359.